

40 & 41 Vict.
c. 2.

(2) The date of payment of any Treasury Bills issued under this section shall be a date not later than the thirty-first day of March, one thousand nine hundred and forty-six, and section six of the Treasury Bills Act, 1877 (which relates to the renewal of bills), shall not apply with respect to those bills.

(3) Any money borrowed otherwise than on Treasury Bills shall be repaid, with interest not exceeding three pounds per centum per annum, out of the growing produce of the Consolidated Fund, at any period not later than the next succeeding quarter to that in which the money was borrowed.

(4) Any money borrowed under this section shall be placed to the credit of the account of the Exchequer, and shall form part of the said Consolidated Fund, and be available in any manner in which such Fund is available.

(5) The interest on any money borrowed under this section shall be paid out of the permanent annual charge for the National Debt.

Short title.

4. This Act may be cited as the Consolidated Fund (No. 2) Act, 1945.

CHAPTER 5.

Representation of the People Act, 1945.

ARRANGEMENT OF SECTIONS.

PART I.

FRANCHISE.

Section.

1. Extension of local government franchise.
2. Abolition of spouse's qualification.
3. Members of forces and war workers abroad.

PART II.

RESUMPTION OF LOCAL ELECTIONS.

4. Triennial elections.
5. Annual elections of one-third of councillors.
6. Elective auditors.
7. Qualification for election and holding office.
8. City of London.
9. County and district council elections in Scotland.
10. Town council elections in Scotland.
11. Qualification for membership of councils in Scotland.
12. Power to make supplementary orders as to local elections.

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Section.

13. Registers which are to be in force for local government and parliamentary elections.
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Third Schedule.—Transitional provisions on expiration of National Registration Act, 1939.

Fourth Schedule.—Adaptation of enactments.

Fifth Schedule.—Enactments repealed.

An Act to amend the law relating to parliamentary and local government franchises, and the registration of parliamentary and local government electors, to provide for the resumption of local elections, and otherwise to amend the law relating to parliamentary and local government elections, including the redistribution of seats at parliamentary elections. [15th February 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I.

FRANCHISE.

Extension of
local
government
franchise.

1. Subject to the provisions of Part III of this Act, the class of persons qualified as local government electors for any local government area shall be extended so as to include any person who has, or but for an incapacity arising from his status as a peer would have, a qualification as a parliamentary elector qualifying him to be registered in that area.

Abolition of
spouse's
qualification.

2. No person shall be qualified as a parliamentary or local government elector for any constituency or local government area unless that person is qualified as an elector for that constituency or area otherwise than as the husband or wife of a person so qualified:

Provided that this section shall not affect—

- (a) the right of any person to be registered for and vote at any parliamentary election initiated (within the meaning of the Act of 1943) before the date of the commencement of this Act; or
- (b) the qualification of any person for any office held by that person immediately before that date, so as to vacate or require that person to vacate the office.

Members of
forces and
war workers
abroad.

3.—(1) For the purposes of the Act of 1943, the meaning of the expression "member of the forces" shall be extended so as to include any member (whether male or female) of any of His Majesty's naval, military or air forces raised elsewhere than in the United Kingdom or a Dominion, who either—

- (a) on the thirty-first day of August, nineteen hundred and thirty-nine, was not a member of any such force; or

- (b) being on that date a member of a reserve or auxiliary force raised as aforesaid has since that date been called up for actual service;

PART I.
—cont.

and who, in either case, is not for the time being released from actual service for an indefinite period:

Provided that electoral registration regulations may provide that this subsection shall not apply to any force specified in the regulations as being equivalent to the Home Guard.

In this subsection the expression "Dominion" means a Dominion within the meaning of the Statute of Westminster, 22 & 23 Geo. 5. 1931, and includes any territory administered by His Majesty's government in such a Dominion.

(2) Subsection (1) of section eleven of the Act of 1943 (which provides for conferring on persons registered in the National Register as persons engaged in war work abroad rights similar to those conferred by that Act on seamen) shall apply also, as it applies to a person so registered, to a person not registered in the National Register who is certified—

- (a) by a commissioned officer in His Majesty's forces to have been a member of the forces but to have ceased (whether before or after the passing of this Act) to be such a member at a time when he was outside the United Kingdom; and
- (b) on behalf of any government department, by an officer of that department or of an organisation authorised for the purpose of this provision by that department, to be engaged in work of national importance outside the United Kingdom (whether ashore or afloat) in connection with any war in which His Majesty may be engaged.

(3) The provisions of the First Schedule to this Act shall have effect in relation to the forms to be used to enable persons who are members of the forces by virtue of subsection (1) of this section and such persons as are referred to in the last foregoing subsection to be registered as parliamentary electors and for the appointment of proxies by such persons.

PART II.

RESUMPTION OF LOCAL ELECTIONS.

4.—(1) For the purposes of any provision of the appropriate Act limiting the term of office of county councillors, metropolitan borough councillors, district councillors or parish Triennial elections.

PART II.
—cont.

councillors to three years, and requiring them to retire together in every third year, the period beginning on the day on which the councillors elected at the ordinary election held last before the commencement of this Act came into office and ending—

- (a) in the case of county councillors, on the eighth day of March, nineteen hundred and forty-six;
- (b) in the case of metropolitan borough councillors, on the first day of November, nineteen hundred and forty-five; and
- (c) in the case of district councillors and parish councillors, on the fifteenth day of April, nineteen hundred and forty-six;

shall be treated as if it were a period of three years; and ordinary elections of councillors shall be held accordingly under the appropriate Act.

(2) For the purpose of any provision of the appropriate Act limiting the term of office of aldermen to six years, or requiring one half as near as may be of the whole number of aldermen to retire in every third year, the period between the ordinary election of aldermen held last before the commencement of this Act and—

- (a) in the case of county aldermen, the annual meeting of the county council in the year nineteen hundred and forty-six; or
- (b) in the case of aldermen of a borough or metropolitan borough, the annual meeting of the borough council in the year nineteen hundred and forty-five;

shall be treated as if it were a period of three years; and ordinary elections of aldermen shall be held accordingly under the appropriate Act.

(3) If there is a vacancy among the councillors of any council before their term of office expires under subsection (1) of this section, then—

- (a) if the vacancy occurs more than six months before the expiration of that term or exists at the commencement of this Act, no election shall be held to fill the vacancy under the appropriate Act, but a person to fill the vacancy shall be elected as soon as conveniently may be by the council;
- (b) if the vacancy occurs within the said six months, it shall remain unfilled until the first ordinary election required to be held under subsection (1) of this

section so, however, that, in the event of a vacancy or simultaneous vacancies occurring among the councillors within the said six months whereby the total number of unfilled vacancies among the councillors exceeds one-third of the whole number of councillors, that vacancy or those vacancies shall be filled in manner provided by the last foregoing paragraph.

PART II.
—cont.

(4) For the purpose of any provision of the appropriate Act providing that a person elected under the Act to fill a casual vacancy shall hold office until the date upon which the person in whose place he is elected would regularly have retired and shall then retire, a councillor elected by the council under the last foregoing subsection, and a councillor or alderman elected under the proviso to section one of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, shall be deemed to have been elected to fill a casual vacancy under the appropriate Act. 2 & 3 Geo. 6.
c. 115

(5) For the purpose of this section, the expression "appropriate Act" means, in relation to a councillor or alderman of the London County Council or a metropolitan borough council, the London Government Act, 1939, and in relation to any other councillor or alderman, the Local Government Act, 1933. 2 & 3 Geo. 6.
c. 40.
23 & 24 Geo. 5
c. 51.

5.—(1) Any provision of the Local Government Act, 1933, limiting the term of office of councillors of a borough or district to three years, and requiring one-third of the whole number of the councillors thereof, or of each ward thereof, as the case may be, to retire in every year (hereinafter referred to as a "rotation in thirds provision") shall have effect subject to the following provisions of this section. Annual
elections of
one-third of
councillors.

(2) The following councillors shall retire on the appropriate date, that is to say—

- (a) councillors elected at the ordinary election held in the year nineteen hundred and thirty-six (in the case of a borough) or nineteen hundred and thirty-seven (in the case of a district) and any councillor subsequently elected under the Local Government Act, 1933, to fill a casual vacancy in the office of any councillor elected at the said ordinary election;
- (b) any councillor elected by the council to fill a casual vacancy whether so elected under the proviso to section one of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, or under subsection (5) of this section;

PART II.
—cont.

and an ordinary election shall be held to fill their places in like manner as an ordinary election would under the Local Government Act, 1933, have been held to fill the places of one-third of the whole number of councillors.

(3) The councillors to be included in the one third of the whole number of councillors of the borough or district or, in the case of a borough or urban district divided into wards, of each ward thereof, who are required by the rotation in thirds provision to retire on the first and second anniversaries of the appropriate date shall be determined as follows:—

- (a) as between two or more councillors who have been in office without re-election for different periods, a councillor who has been so in office for a longer period shall retire before a councillor who has been so in office for a shorter period;
- (b) as between two or more councillors who have been so in office for the same period—
 - (i) where their election was contested, a councillor elected by a smaller number of votes shall retire before a councillor elected by a larger number of votes;
 - (ii) where their election was not contested, or where their election was contested and they received the same number of votes, the order of their retirement shall be determined by lots drawn at such meeting of the council as the council may determine, the drawing being conducted under the direction of the person presiding at the meeting;
- (c) in the case of councillors elected to come into office on the appropriate date, the foregoing paragraphs shall apply to them all alike (including councillors elected to fill a casual vacancy), but for the purpose of those paragraphs any councillor elected after that date to fill a casual vacancy in the office of a councillor elected on that date, shall be treated as having himself been elected on that date and as having been in office since that date without re-election:

Provided that, where under subsection (5) of section thirty-five of the Local Government Act, 1933, the order of retirement of the councillors of a rural district council is determined in accordance with directions given by the county council, the order of retirement of the councillors of that council shall also be so determined for the purpose of this subsection.

(4) No election of a councillor of any council to which a rotation in thirds provision applies, whether an ordinary election or an election to fill a casual vacancy, shall be held under the Local Government Act, 1933, before the election required to be held under subsection (2) of this section, and the term of office of any such councillor holding office at the commencement of this Act shall be extended until he is required to retire by this section.

(5) If there is a vacancy among the councillors of any council to which a rotation in thirds provision applies before the appropriate date, then—

(a) if the vacancy occurs more than six months before that date or exists at the commencement of this Act, a person to fill the vacancy shall be elected as soon as conveniently may be by the council;

(b) if the vacancy occurs within the said six months, it shall remain unfilled until the ordinary election required to be held under subsection (2) of this section, and shall be filled at that election in addition to the other places then to be filled, so, however, that, in the event of a vacancy or simultaneous vacancies occurring among the councillors within the said six months whereby the total number of unfilled vacancies among the councillors exceeds one-third of the whole number of councillors, that vacancy or those vacancies shall be filled in manner provided by the last foregoing paragraph.

(6) During his term of office the mayor of a borough, and the chairman and vice-chairman of a district council, shall continue to be a member of the borough council or district council, as the case may be, notwithstanding the provisions of this section as to the retirement of councillors.

(7) Nothing in this section shall affect any power of His Majesty to create new boroughs, or any power to make Orders in Council or orders conferred by the following provisions of the Local Government Act, 1933, that is to say—

(a) section twenty-five (which relates to the division of a borough into wards and the alteration of the number of councillors or wards or boundaries);

(b) the proviso to subsection (3) of section thirty-five (which provides for the rotation in thirds provision being replaced as respects a district council by the provisions of that Act requiring the retirement of the whole council in every third year);

(c) section thirty-seven (which relates to the division of an urban district into wards);

PART II.
—cont.

(d) subsection (2) of section thirty-eight (which relates to the number of rural district councillors to be elected by the several rural parishes);

(e) Part VI (which relates to the alteration of areas); and any such Order in Council or order may exclude or vary the provisions of this section to the like extent as it may exclude or vary the rotation in thirds provision.

(8) In this section the expression “ appropriate date ” means—

(a) in relation to a borough, the first day of November, nineteen hundred and forty-five; and

(b) in relation to a district, the fifteenth day of April, nineteen hundred and forty-six;

and in the application of this section to the councillors of a district council, references to one-third thereof shall be construed as references to one-third thereof as near as may be.

Elective
auditors.

6. No election of elective auditors of a borough shall be held in the year nineteen hundred and forty-five, and all such auditors in office at the commencement of this Act shall continue in office until the ordinary day of election of elective auditors in the year nineteen hundred and forty-six:

Provided that the foregoing provisions shall not prevent the vacation of the office of an elective auditor before the said day otherwise than by effluxion of time; and, in the event of that office being vacant before the said day, a person to fill the vacancy, whose term of office shall expire on the said day, shall be elected as soon as conveniently may be by the council of the borough.

Qualification
for election
and holding
office.

7.—(1) A person holding office as a member of any local authority within the meaning of the Local Government Act, 1933, or the London Government Act, 1939, on the nomination day for the ordinary election of councillors held next after the commencement of this Act shall, notwithstanding that he does not possess the qualifications required by section fifty-seven of the Local Government Act, 1933, or section thirty-one of the London Government Act, 1939, as the case may be, be qualified to be elected councillor at that election, or chairman (in the case of a county, district or parish), mayor (in the case of a borough or metropolitan borough), or alderman (in the case of a county or borough or metropolitan borough) at the election of a chairman, mayor or alderman next following the said nomination day, and to hold office as such for the term for which he may then be elected.

(2) A person holding office as a member of any such local authority immediately before the fifteenth day of October,

PART II.
—cont.

nineteen hundred and forty-five (on which date the register of local government electors prepared under the Act of 1918 in the year nineteen hundred and thirty-nine is, under the following provisions of this Act, to cease to be in force for the purpose of determining a person's qualification for any office) shall, if he is then qualified to hold that office as being a local government elector, continue to be so qualified so long as he continues to hold it without re-election, notwithstanding that, on that register ceasing to be in force as aforesaid, he no longer possesses the qualifications required by the said sections.

(3) Any person being, on the day of nomination for the election of elective auditors in the year nineteen hundred and forty-six, the elective auditor of a borough shall be qualified to be elected elective auditor of that borough at that election, notwithstanding that he is not qualified to be a councillor of the borough.

(4) For the purposes of section fifty-eight of the Local Government Act, 1933, and section thirty-two of the London Government Act, 1939 (which provide that a person ceasing to hold any office to which he is elected under the Act shall, unless he is not qualified or is disqualified, be eligible for re-election) a person elected to any office under the proviso to section one of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, or under this Part of this Act shall be deemed to have been elected under the Local Government Act, 1933, or the London Government Act, 1939, as the case may be.

8.—(1) No election of common councilmen in the City of London (other than an election to fill a casual vacancy in accordance with the following provisions of this section) shall be held before the twenty-first day of December, nineteen hundred and forty-six, and any common councilman in office at the commencement of this Act or elected in accordance with the following provisions of this section to fill a casual vacancy shall continue in office until that day and shall then retire:

Provided that nothing in this subsection shall prevent—

- (a) the vacation of the office of a common councilman otherwise than by effluxion of time; or
- (b) the re-election of a common councilman retiring thereunder.

(2) If at the commencement of this Act there is a vacancy in the office of a common councilman, or if any such vacancy occurs before the twenty-first day of September, nineteen hundred and forty-six, the Common Council shall as soon as conveniently may be fill the vacancy by electing a person possessing the qualifications necessary for election to the office and not being subject to any disqualification for holding the office:

PART II.
—cont.

Provided that section five of the local Act 12 & 13 Vict.
cap. xciv—

(a) in so far as it requires, as a qualification for election as a common councilman for any ward in the City of London, the occupation of premises in the said ward rated at the amount specified in the said section shall not apply to any election under this subsection; and

(b) in so far as it requires, as a qualification for such election, that the person to be elected should be registered in the parliamentary register of electors with respect to premises in the said ward, shall be taken as requiring that a person to be elected under this subsection either should have been so registered in the register which came into force in the year nineteen hundred and thirty-nine or should be so registered in the register which is for the time being in force, or deemed to be in force, under the following provisions of this Act.

30 & 31 Vict.
c. i.

(3) For the purpose of elections of aldermen and any other purpose except elections of common councilmen, the lists of persons in the several wards of the City of London who are entitled to vote under the City of London Municipal Elections Amendment Act, 1867, being the lists made out and signed on the third day of December, nineteen hundred and forty, in accordance with section five of the said Act, shall remain in force until the third day of December, nineteen hundred and forty-six; and no further lists shall be made out under the said section five so as to come into force before that day.

County and
district
council
elections in
Scotland.

9.—(1) For the purposes of any enactment requiring the election of members of county and district councils in Scotland to take place every third year, and of any reference in any enactment to a triennial election of county councillors, the period of seven years ending on the first Tuesday in December in the year nineteen hundred and forty-five shall be treated as if it were three years and accordingly elections of members of such councils shall be held in the year nineteen hundred and forty-five and in every third year thereafter.

(2) The term of office of any such councillor in office at the commencement of this Act shall be extended until the first Tuesday in December, nineteen hundred and forty-five:

Provided that nothing in this subsection shall operate to continue in office a county councillor representing a burgh after he ceases to be a town councillor.

Town council
elections in
Scotland.

10.—(1) The provisions of the Town Councils (Scotland) Acts, 1900 to 1923, and of any local Act with regard to the

retiral and election of town councillors for burghs in Scotland shall have effect subject to the following provisions of this section.

(2) For the purpose of any enactment requiring one-third of the town councillors for a burgh or for each ward in a burgh to retire in each year, the period of seven years ending on the first Tuesday of November, nineteen hundred and forty-five, shall be treated as if it were one year, and the term of office and date of retiral of town councillors elected by the electors and in office at the commencement of this Act shall be determined accordingly.

(3) Any town councillor elected by the council before the issue in the year nineteen hundred and forty-five of the election notice shall continue in office until the first Tuesday of November, nineteen hundred and forty-five, and shall then retire and his place shall be filled by the electors and he shall be reckoned as one of the one-third of the councillors required to retire at the said date if, and only if, he was elected to fill a place occupied at any time since the issue of the election notice in the year nineteen hundred and thirty-eight by a councillor who was elected by the electors and would have been required under the last foregoing subsection to retire on the aforesaid day:

Provided that nothing in this subsection shall require any person holding the office of provost or of honorary treasurer to retire prior to the expiry of his term of office as provost or honorary treasurer.

(4) A vacancy among the town councillors of any burgh which occurs between the commencement of this Act and the issue in the year nineteen hundred and forty-five of the election notice and which, whether by virtue of a resolution of the town council or otherwise, is required by or under the provisions of any local Act to be filled by the electors otherwise than at the annual election shall be filled by the town council.

(5) In the application of this section to a burgh in which the annual retiral and election of councillors takes place, by virtue of a determination under section seven of the Town Councils (Scotland) Act, 1903, on a day other than the first Tuesday of November the foregoing provisions of this section shall have effect subject to the following modifications:—

(a) for any reference to the first Tuesday of November there shall be substituted a reference to that other day;

PART II.
—cont.

(b) in the case where the election notice is issued in the months of January or February, for references to the years nineteen hundred and thirty-eight and nineteen hundred and forty-five there shall be substituted respectively references to the years nineteen hundred and thirty-nine and nineteen hundred and forty-six.

63 & 64 Vict.
c. 49.

(6) In this section the expression " election notice " means the notice issued in pursuance of section forty-two of the Town Councils (Scotland) Act, 1900, or of any similar provision in a local Act.

Qualification
for member-
ship of councils
in Scotland.

11.—(1) A person holding office as a member of a county, town or district council in Scotland on the day when the notice of election is next issued after the commencement of this Act, shall, unless he is subject to any disqualification, be deemed to be duly qualified to be elected at the election to which that notice relates, and to be, a member of that council for the term for which he may then be elected, notwithstanding that he does not possess the qualification for such election and membership prescribed by the enactments relating thereto.

(2) A person holding office as a member of any such council immediately before the fifteenth day of October, nineteen hundred and forty-five (on which date the register of local government electors prepared under the Act of 1918 in the year nineteen hundred and thirty-nine is, under the following provisions of this Act, to cease to be in force for the purpose of determining a person's qualification for any office) shall, if he is then qualified to hold that office as being a local government elector, continue to be so qualified so long as he continues to hold it without re-election, notwithstanding that, on that register ceasing to be in force as aforesaid, he no longer possesses the qualifications required by the said enactments.

(3) In this section the expression " notice of election " means the notice issued in pursuance of section forty-two of the Town Councils (Scotland) Act, 1900, or of any similar provision in a local Act, relating to any burgh or of any provision applying the said section forty-two to elections of county and district councillors, and the expression " disqualification " means in relation to a town council any such disqualification as is mentioned in paragraphs (3) or (4) of section thirteen of the said Act of 1900.

Power to
make
supple-
mentary

12.—(1) Where it appears to the Secretary of State that by reason of special circumstances affecting any local authority within the meaning of the Local Government Act, 1933, or the

London Government Act, 1939, the provisions of sections four and five of this Act are, in relation to that authority or some part of the members thereof, either inapplicable or inadequate without some addition or modification, he may by order make such provision as appears to him to accord with the principles of those sections and to be necessary or expedient, in consequence of the passing of the Local Elections and Register of Electors (Temporary Provisions) Act, 1939, and the Acts amending and continuing that Act and of the repeal of those Acts by this Act, for the purpose of securing that the authority shall be, and be deemed always to have been, duly constituted.

PART II.
—cont.
orders as to
local
elections.

(2) The Secretary of State may also by order make such provision as appears to him to be necessary or expedient for the purpose of giving effect to the said sections and, in particular, for the holding of any election required thereby to be held.

(3) Any provision of any order made under this section may apply either generally to any class of local authority or to any particular local authority.

(4) Any order made under this section shall have effect notwithstanding anything in any enactment (including an enactment contained in this Act), or anything in any instrument made by virtue of any such enactment.

(5) Any order made under this section shall be laid before Parliament as soon as may be after it is made, but section one of the Rules Publication Act, 1893, shall not apply to any order so made. ^{56 & 57 Vict c. 66.}

(6) If either House of Parliament, within the period of twenty-eight days beginning with the date on which any such order is laid before it, resolves that the order be annulled, the order shall thereupon become void, but without prejudice to the validity of anything previously done thereunder or to the making of a new order.

(7) In reckoning any such period of twenty-eight days, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

(8) In the application of this section to Scotland for any reference to a local authority there shall be substituted a reference to a county, town or district council and for any reference to sections four and five of this Act there shall be substituted a reference to sections nine and ten of this Act.

PART III.

TEMPORARY PROVISIONS AS TO REGISTRATION.

Registers
which are
to be in force
for local
government
and parlia-
mentary
elections.

13.—(1) The register of electors to be in force for elections held before the coming into force of a new register prepared under section eleven of the Act of 1918, shall (subject to the provision made by this Part of this Act for certain contingencies) be as follows:—

- (a) for local government elections, on or after their resumption under Part II of this Act, the register shall be a register (to be called the "annual register") prepared under this Part of this Act so as to come into force on the fifteenth day of October in each year;
- (b) for parliamentary elections the register shall be—
 - (i) for any election initiated before the first day of April, nineteen hundred and forty-five, a register specially prepared for the election under the Act of 1943;
 - (ii) for any election initiated during the period beginning with the said first day of April and ending with the thirtieth day of September, nineteen hundred and forty-five, a register (to be called the "May 1945 register") prepared under this Part of this Act so as to come into force on the seventh day of May, nineteen hundred and forty-five;
 - (iii) for any election initiated during the period beginning with the first day of October and ending with the thirty-first day of December in the year nineteen hundred and forty-five, or during the period beginning with the tenth day of September and ending with the thirty-first day of December in any subsequent year, the annual register which comes into force in that year;
 - (iv) for any election initiated during the period beginning with the first day of January and ending with the ninth day of September in the year nineteen hundred and forty-six or any subsequent year, a register consisting of a civilian residence register and a service register specially prepared for the election under the Act of 1943, and of the business premises register comprised in the annual register which came into force in the preceding year.

(2) Nothing in this Part of this Act shall apply to the register of parliamentary electors for any university constituency.

PART III.
—cont.

14.—(1) Subject as hereinafter provided, there shall in May 1945 the year nineteen hundred and forty-five be prepared in each constituency a register of parliamentary electors in accordance with the Act of 1943 as if a general election had been initiated on the first day of March in that year, and the register so prepared shall be the May 1945 register for that constituency:

Provided that—

- (a) if a general election is in fact initiated before the end of the said month of March, no further proceedings shall be taken with respect to the preparation of a May 1945 register for any constituency; and
- (b) if a by-election is initiated in the said month of March in any constituency, no further proceedings shall be taken with respect to the preparation of a civilian residence or business premises register to be comprised in the May 1945 register for that constituency.

(2) If a general election is initiated before the end of the month of March, nineteen hundred and forty-five, the register in force for any parliamentary election initiated during the period beginning with the first day of April and ending with the thirtieth day of September, nineteen hundred and forty-five, shall, instead of being the register specified in the last foregoing section—

- (a) in the case of an election initiated not later than the ninth day of September, be a register specially prepared for the election under the Act of 1943; and
- (b) in the case of an election initiated after the said ninth day of September, be the annual register which comes into force in that year.

(3) If in any constituency a by-election is initiated in the said month of March, the civilian residence register and the business premises register prepared and published under the Act of 1943 for that election shall be treated for the purposes of this Part of this Act as if they had been duly published as part of the May 1945 register for that constituency.

(4) Applications to be registered in the business premises register to be comprised in the May 1945 register—

- (a) shall be made so as to be received by the registration officer before the beginning of the said month of March;

PART III.
—cont.

- (b) shall not be invalid by reason only of being made before the commencement of this Act; and
- (c) subject to the provisions of this Act as to making applications on a form of service declaration, or by other persons on behalf of members of the forces and seamen, and to any electoral registration regulations extending those provisions to war workers abroad, shall be made in the form prescribed by the Electoral Registration Regulations, 1944, so much of that form as relates to applications by or on behalf of the husband or wife of the occupier of business premises being disregarded, whether filled in or not.

Any application to be so registered which is made as aforesaid shall be treated as having been made also for the purposes of any election initiated in the said month of March, and subject as aforesaid no person shall be registered in the business premises register for any election initiated during that month otherwise than in pursuance of such an application.

(5) For the purposes of the service register to be comprised in the May 1945 register, any service declaration or notification that a service declaration has been cancelled, if received by a registration officer on or before such date as may be prescribed by electoral registration regulations, not being later than the last day of the said month of March, shall be of the same effect for the purpose of determining the right of the declarant to be registered as if received by the registration officer before the qualifying date, and subsection (5) of section eight of the Act of 1943 shall have effect accordingly.

Annual
register under
this Act.

2 & 3 Geo. 6.
c 91.

15.—(1) If in the year nineteen hundred and forty-five or any subsequent year the National Registration Act, 1939, is in force on the relevant date, there shall be prepared a register of local government electors and parliamentary electors which shall be published and come into force on the fifteenth day of October in that year, and that register shall be the annual register.

- (2) The annual register shall consist of two parts, namely—
 - (a) a part (to be called the “general register”) in which shall be registered parliamentary electors and local government electors registered in respect of a qualification conferred by section one of this Act and which shall accordingly consist of a civilian residence register, a business premises register and a service register; and
 - (b) a part (to be called the “ratepayers register”) in which shall be registered local government electors registered in respect of any other qualification.

PART III.
—cont.

(3) The annual register, so far as it is a register of local government electors, shall be prepared in accordance with the Second Schedule to this Act; and, save as hereinafter expressly provided, shall remain in force as such until the publication of the next annual register or of a register prepared under section eleven of the Act of 1918.

(4) The general register comprised in the annual register, so far as it is a register of parliamentary electors, shall be prepared as if it were a register specially prepared under the Act of 1943 for a parliamentary election initiated on the first day of August.

(5) In this section the expression "the relevant date" means the qualifying date for the general register comprised in the annual register, that is to say—

- (a) in any year in which section one of the Parliamentary Electors (War-Time Registration) Act, 1944,^{c 24.} is in force on the first day of August, the thirtieth day of June in that year; and
- (b) in any other year, the thirty-first day of July in that year.

16.—(1) Notwithstanding anything in the Act of 1943, a civilian residence register or service register shall be specially prepared under that Act for a parliamentary election only where the register to be in force for that election is, by virtue of this Act, to include a civilian residence or service register so prepared.

7 & 8 Geo. 6.
as to civilian
residence
and service
registers
in certain
contingencies.

(2) Where a civilian residence or service register is so prepared for an election initiated after the thirty-first day of July, nineteen hundred and forty-five, it shall be prepared also as a register of local government electors in accordance with the Second Schedule to this Act, except that the qualifying date by reference to which it is to be prepared shall be the qualifying date for that election.

(3) Where a parliamentary election for which a civilian residence or service register is to be so prepared is initiated during the first nine days of September in any year, the qualifying date for that election shall, instead of being the day specified in section one of the Act of 1943, be the day which is the qualifying date for the annual register.

(4) Where civilian residence and service registers so prepared are published for a parliamentary election initiated in any constituency (including a general election) during the period beginning with the first day of August and ending with the ninth day of September, they shall be treated for the purposes of this Part of this Act as if they had been

PART III.
—cont.

duly published as part of the annual register then in course of preparation.

(5) Where civilian residence and service registers so prepared are published for a parliamentary election initiated in any constituency (including a general election) during the period beginning with the first day of January and ending with the thirty-first day of July, they shall be substituted for the civilian residence and service registers comprised in the annual register which is then in force as the register of local government electors:

Provided that the said substitution shall not have effect for the purpose of any local government election except an election for a local government area wholly contained in that constituency, or wholly contained in that constituency and other constituencies in which parliamentary elections have been initiated in the same month.

Modifications
as to
business
premises
register.

17.—(1) Notwithstanding anything in the Act of 1943, no business premises register shall be specially prepared for any parliamentary election initiated after the thirty-first day of March, nineteen hundred and forty-five:

Provided that if a general election is initiated before the end of the said month of March (so that no May 1945 register comes into force under this Act), a reference to the ninth day of September shall be substituted for the reference in this subsection to the thirty-first day of March.

(2) Paragraph (b) of subsection (3) of section twelve of the Act of 1943 (which provides for the publication, after the date referred to in that subsection, of an annual business premises register prepared under that Act) shall cease to have effect.

(3) If no May 1945 register comes into force under this Act and a parliamentary election is initiated in any constituency (including a general election) during the first nine days of September nineteen hundred and forty-five, subsections (2), (3) and (4) of the last foregoing section shall apply to the business premises register to be specially prepared under the Act of 1943 for that election as they apply to the civilian residence and service registers to be so prepared.

Business
premises
applications by
service voters.

18.—(1) A person qualified to be registered in the business premises register to be comprised—

(a) in the register for any parliamentary election initiated in March, nineteen hundred and forty-five;

(b) in the May 1945 register; or

(c) in the annual register;

PART III.

—cont.

may, if at the time of his application he is a member of the forces or a seaman, apply to be so registered on the form applicable in his case for the making of a service declaration, giving the address of the business premises occupied by him on the qualifying date instead of the address at which he was, or but for his service as a member of the forces or a seaman would have been, residing.

(2) Any person registered in the business premises register in pursuance of an application made as aforesaid shall not be entitled to vote in person in respect of that registration, but shall be entered in the absent voters list and entitled to appoint a proxy, and shall be entitled to vote by post or by proxy accordingly.

(3) The provisions of the Second Schedule to the Act of 1943 shall apply in relation to the appointment and voting of proxies under this section:

Provided that any such appointment and any cancellation of such an appointment by any person shall be made on the form applicable in his case for the appointment of a proxy to vote for him at an election for which he is registered in the service register or for the cancellation of any such appointment, as the case may be, but, if the form requires him to give the address at which he is, or but for his service as a member of the forces or a seaman would be, residing, he shall give instead the address of the business premises as given in his application under this section to be registered in the business premises register.

(4) Any such application, appointment or cancellation shall be marked with the words "business premises application" or words to the like effect, and any form which may be used under this section for making any such application, appointment or cancellation shall be taken to relate to the business premises register if, but only if, it is so marked.

(5) Where, within the time allowed for the receipt of applications to be registered in any such business premises register, the registration officer or other officer concerned receives a form of service declaration duly filled in and the declaration is—

(a) attested as a service declaration;

(b) marked as aforesaid; and

(c) dated on or after the qualifying date by reference to which that register is to be prepared;

PART III.
—cont.

then it shall be conclusively presumed that the person signing the form was at the time of his application a member of the forces or a seaman and it shall be presumed until the contrary is shown that he is entitled to be registered in that business premises register in respect of the premises referred to in the form.

(6) Paragraph (b) of subsection (1) of section fifteen of the Act of 1943 (which penalises persons improperly attesting service declarations) shall apply to an application to be registered in the business premises register made on a form of service declaration as if it were a service declaration.

(7) In the application of this section to persons disqualified as peers from registration as parliamentary electors—

(a) paragraphs (a) and (b) of subsection (1) shall not apply; and

(b) subsections (2) and (3) shall have effect subject to any modifications prescribed by electoral registration regulations made under the following provisions of this Act for conferring on those persons rights as to the appointment of a proxy to vote at local government elections.

Business
premises appli-
cations on
behalf of
service voters
by spouse or
business
manager.

19.—(1) An application for the registration of any person in the business premises register to be comprised in the May 1945 register or the annual register, may, if at the time of the application that person is a member of the forces or a seaman, be made on that person's behalf by that person's spouse, or if that person is not married or is separated from the spouse, or the spouse is a member of the forces, a seaman or a war worker abroad, by the manager of that person's business.

(2) Any person registered in the business premises register in pursuance of an application made under this section shall not be entitled to vote in person in respect of that registration, but shall be entered in the absent voters list and entitled to appoint a proxy, and shall be entitled to vote by post or by proxy accordingly:

Provided that no ballot paper shall be sent to a person so registered for the purpose of voting by post except in pursuance of a request or application made by that person.

(3) Subsection (3) and (so far as it relates to appointments of proxies or cancellations of such appointments) subsection (4) of section eighteen of this Act shall apply to the appointment and voting of proxies under this section and to the cancellation of such appointments as they apply to the

appointment and voting of proxies under that section and the cancellation of such appointments.

PART III.
—*cont.*

(4) Any application made under this section for a person to be registered in the May 1945 register shall be made in accordance with subsection (4) of section fourteen of this Act, and shall be treated accordingly as having been made also for the purposes of any election initiated in the month of March, nineteen hundred and forty-five:

Provided that the person making the application shall insert therein a declaration—

(a) that he or she is the spouse of the person on whose behalf it is made, or that he or she is the manager of that person's business and either that person is not married or the spouse is a member of the forces, a seaman or a war worker abroad or is separated from that person; and

(b) that that person is at the time of the application a member of the forces or a seaman.

(5) In this section references to the manager of a person's business shall be construed, in relation to any application made under this section on that person's behalf, as referring to the person who at the time of the application is carrying on on that person's behalf or as his partner the business, profession or trade of that person in respect of which the application is made; and the expression "war worker abroad" means a person registered or qualified to be registered in the service register for any constituency otherwise than as a member of the forces or a seaman.

(6) Sub-paragraph (i) of paragraph (a) of subsection (1) of section fifteen of the Act of 1943 (which penalises persons making false statements in applications to be registered in the business premises register) shall apply in relation to an application under this section as if it were made by the person signing it on his own behalf.

(7) In the application of this section to persons disqualified as peers from registration as parliamentary electors—

(a) the reference in subsection (1) thereof to the May 1945 register and subsection (4) thereof shall not apply; and

(b) subsection (2) thereof and subsection (3) of section eighteen of this Act as applied by subsection (3) of this section shall have effect subject to any modifications prescribed by electoral registration regulations made under the following provisions of this Act for conferring on those persons rights as to the appointment of a proxy to vote at local government elections.

PART III.

—*cont.*
Extension of
time for
registering
prisoners
of war.

20.—(1) For the purposes of any service register to be prepared under the Act of 1943 or this Act, any service declaration made by a member of the forces, if accompanied by a certificate signed by a commissioned officer of His Majesty's forces and stating that the declarant—

- (a) had been a prisoner of war, and made the declaration on ceasing to be a prisoner of war; and
- (b) told the officer signing the certificate that he had not, before becoming a prisoner of war, made a service declaration;

shall, subject to the following provisions of this section, be of the same effect, whenever it is received by the registration officer, for the purpose of determining the right of the declarant to be registered as a parliamentary elector, as if received by the registration officer before the qualifying date by reference to which the register is prepared, and subsection (5) of section eight of the Act of 1943 shall have effect accordingly.

(2) No person shall be entitled to be registered for the purposes of any election by virtue of a service declaration to which the foregoing subsection applies, unless the declaration is received by the registration officer four clear days at least before the day fixed for nomination.

(3) Electoral registration regulations shall provide for the publication, after the date of initiation of a parliamentary election, as a supplement to the service register in force for that election (whether published before or after that date) of a list of any persons to be registered therein under this section by virtue of service declarations received by the registration officer too late for the inclusion of their names in the register as originally published.

Preparation
of registers
and appeals
from regis-
tration
officer.

21.—(1) Electoral registration regulations shall provide for securing the compilation and publication by registration officers of the registers required by this Part of this Act, and may apply any of the registration rules set out in the First Schedule to the Act of 1918 subject to any modifications made by the regulations.

(2) Without prejudice to the generality of the foregoing subsection, electoral registration regulations shall provide—

- (a) in the case of the May 1945 register, for the publication, not later than the end of March in that year, of lists of persons who appear to the registration officer to be qualified to be registered in the civilian residence and business premises registers; and

- (b) in the case of the annual register, for the publication, not later than the end of August, of lists of persons who appear to the registration officer to be qualified to be registered in any part of that register; and
- (c) for the determination by the registration officer of claims and objections with respect to the said lists;

and from any such determination of a registration officer an appeal shall lie in accordance with the provisions of section fourteen of the Act of 1918 subject to any modifications made by the regulations:

Provided that paragraph (b) of this subsection shall not apply to the service register to be comprised in the annual register prepared in the year nineteen hundred and forty-five.

(3) Notwithstanding anything in subsection (4) of section twelve of the Act of 1943, an appeal shall also lie as aforesaid from any determination by a registration officer of a claim or objection made with respect to any list published in pursuance of subsection (2) of that section for an election initiated after the twenty-eighth day of February, nineteen hundred and forty-five:

Provided that if a general election is initiated before the end of March in that year (so that no May 1945 register comes into force under this Act) a reference to the thirty-first day of July shall be substituted for the reference in this subsection to the twenty-eighth day of February, except as respects any appeal pending when the general election is initiated.

22.—(1) For the purposes of the following provisions of the Act of 1943, namely—

Adjustment of
statutory time
limits in con-
nection with
parliamentary
elections.

- (a) subsection (2) of section two (which provides that the time for holding a parliamentary election shall be extended by reference to the date on which the register under that Act comes into force for the election); and
- (b) section three (which makes provision with respect to a dissolution of parliament when no register is in force under that Act);

any register of parliamentary electors under this Part of this Act in force for an election shall be deemed to be a register under that Act:

Provided that the said subsection (2) shall not apply to any election for which a register under this Part of this Act is in force before the initiation thereof.

PART III.
—cont.

(2) For the purposes of the foregoing subsection, a register of parliamentary electors under this Part of this Act shall not be deemed to be in force for an election by reason only that a business premises register under this Part of this Act is in force for the election.

Transitional
provisions.

23.—(1) For the purpose of determining whether a person is qualified for any office by virtue of his being a local government elector, the register of local government electors prepared under section eleven of the Act of 1918 which came into force on the fifteenth day of November, nineteen hundred and thirty-nine, shall remain in force until the fifteenth day of October, nineteen hundred and forty-five.

Rule 28 of the First Schedule to the Act of 1918 (which requires registration officers to supply copies of the register to persons applying therefor) shall not apply to the said register.

(2) No register of parliamentary or local government electors shall be prepared under the said section eleven in any year in which the National Registration Act, 1939, is in force after the thirty-first day of March, and no person shall by virtue of any enactment or rule of law be required to perform any duty solely with a view to the preparation of a register which by virtue of this subsection is not to be prepared.

(3) On the expiration of the said Act of 1939, the provisions set out in the Third Schedule to this Act shall have effect.

Application
and
adaptation of
enactments.

24.—(1) The provisions of Part I of the Fourth Schedule to this Act shall have effect for the purpose of adapting the Act of 1943 to the provisions of this Part of this Act, so far as it relates to parliamentary elections, and the provisions of Part II of that Schedule shall have effect for the purpose of adapting other enactments to the provisions of the Act of 1943 and this Part of this Act.

(2) Subsection (2) of section twenty-one of and the Third Schedule to the Act of 1943 (which contain provisions for adapting enactments to the provisions of that Act) shall cease to have effect:

Provided that paragraphs 1, 2 and 3 of the said Third Schedule (which adapt references to the parliamentary register, parliamentary electors, etc.) shall continue in force until the seventh day of May, nineteen hundred and forty-five, or if no May 1945 register comes into force on that day, until the following fifteenth day of October, and shall apply also as respects any parliamentary election initiated while they are in force.

PART IV.

TEMPORARY PROVISIONS AS TO VOTING.

25.—(1) Subject to the provisions of this Part of this Act, any person who is registered as a parliamentary elector for any constituency—

(a) in the service register ; or

(b) in pursuance of an application under this Act made by that person on a form of declaration of residence, or on that person's behalf by some other person, in the business premises register ;

Postal voting
by service
voters at
parliamentary
elections
other than
university
elections.

shall, if he has made an application in that behalf in accordance with electoral registration regulations, be entitled to vote by post in the same way, subject to any prescribed modifications, as an absent voter at any general election for which that register is in force, being an election to which this Part of this Act applies.

(2) Every application to vote by post under this section shall give an address (hereinafter referred to as a " voting address "), to which the applicant wishes a ballot paper to be sent, but no person shall be entitled to make such an application while he is outside the postal voting areas or to apply for a ballot paper to be sent outside those areas :

Provided that no such application shall be invalidated by reason of any contravention of this subsection, but a returning officer shall not be obliged to issue a ballot paper in pursuance of such an application, if the voting address given is known to him to be outside the postal voting areas.

(3) A person who has made an application to vote by post under this section shall not be entitled to vote in person at any election for which the application is in force.

(4) The making of such an application by any person shall not prevent or invalidate the appointment of a proxy to vote on his behalf, and (subject as hereinafter provided) ballot papers may be issued to, and a vote may be cast by, both him and his proxy on his behalf.

(5) Any person who has made such an application may, in accordance with electoral registration regulations, supersede it by a fresh application, giving a new voting address, or cancel it by notice to the registration officer concerned.

(6) Unless superseded or cancelled as aforesaid any such application shall continue in force for the purposes of any general election to which this Part of this Act applies so long as the person making the application is registered or entitled to be registered

PART IV.
—cont.

as a parliamentary elector for the constituency by virtue of the same declaration of residence or, in the case of a person registered in the business premises register, so long as that register remains in force.

(7) Any such application or notice cancelling such an application shall be disregarded for the purpose of any election unless received by the registration officer four clear days at least before the day fixed for nomination.

(8) Subsection (3) of section nine of the Act of 1943 (which entitles members of the forces to vote by post provided a ballot paper is not sent to them out of the United Kingdom) shall not apply in relation to a general election to which this Part of this Act applies.

Provisions for
superseding
proxy votes
by postal
votes.

26. Provision shall be made by electoral registration regulations for securing that, where a ballot paper is issued to any person registered in the service register or the business premises register for the purpose of voting by post under this Part of this Act and, when the absent voters' ballot boxes are opened for the purpose of checking the envelopes therein and their contents, the declaration of identity sent to that person with that ballot paper is found to have been returned and is not rejected by the returning officer, any vote cast on that person's behalf by his proxy shall not be counted; and for that purpose the regulations shall in particular provide,—

- (a) for placing, on the declaration of identity to be sent to any person so registered for the purpose of voting by post under this Part of this Act, his number in the relevant register, and for rejecting any such declaration of identity if it is found that that number has been defaced or removed before it is returned to the returning officer;
- (b) for marking on a copy of the relevant register, from the numbers so placed on declarations of identity returned and not rejected, the names of the persons whose proxies' votes are under this section not to be counted;
- (c) for securing that ballot papers issued for the purpose of voting as proxy for a person registered in the service register or the business premises register shall be of a different colour or otherwise readily distinguishable from other ballot papers;
- (d) for enabling any ballot paper issued for the purpose of voting as proxy for a person so registered to be identified after it has been marked (but so far as practicable without disclosing how it has been marked) by reference

to the number of that person in the relevant register, for rejecting any such ballot paper if either—

PART IV.
—cont.

- (i) it is not identifiable in manner provided by the regulations ; or
- (ii) it is found, on comparison with the copy of the relevant register marked in accordance with paragraph (b) of this section, to be a paper which is not to be counted ;

and for rendering not so identifiable any such ballot paper which is not so rejected ;

- (e) for making the said comparison immediately after the number of the ballot papers in the ballot boxes has been counted and recorded in accordance with paragraph 34 of the First Schedule to the Ballot Act, 1872, and (unless^{35 & 36 Vict. c. 33.} that comparison is not completed on the day on which the counting of the votes begins) for the adjournment of the counting on the completion of the comparison until the next following day which is not a Sunday, Christmas Day or Good Friday, or a day which under the Bank Holidays^{34 & 35 Vict. c. 17.} Act, 1871, as amended by any subsequent enactment (including Defence Regulations) is a Bank Holiday in the place where the votes are being counted ;
- (f) for any other matters which appear to the Secretary of State to be incidental to or consequential on the foregoing provisions of this section, including such amendments of the First Schedule to the Ballot Act, 1872, and any other enactment as appear to him to be necessary for carrying those provisions into effect.

27.—(1) Where the returning officer for any university constituency receives from a person registered as an elector for that constituency an application for a voting paper to be sent to him for the purpose of voting by post and the application is accompanied either—

Postal voting
by service
voters at
university
elections.

- (a) by a declaration in the same form and attested in the same manner and giving the same particulars as a service declaration, except that it shall give particulars of the university constituency instead of particulars of the place at which the declarant is or would be residing ; or
- (b) such a certificate as is referred to in subsection (2) of section eleven of the Act of 1943 (which relates to persons registered in the National Register as engaged on war work abroad) ; or
- (c) such certificates as are referred to in subsection (2) of section three of this Act ;

PART IV.
—cont.

and the said declaration purports to be signed by, or the said certificate or certificates purport to relate to, the person making the application, then, notwithstanding anything in the Act of 1918, that person shall be entitled at any general election to which this Part of this Act applies to have a voting paper sent to him at the address given in the application.

(2) No person shall be entitled to make an application for a voting paper to be sent under the foregoing subsection while he is outside the postal voting areas or to apply for a voting paper to be sent outside those areas under that subsection :

Provided that no such application shall be invalidated by reason of any contravention of this subsection but the returning officer shall not be obliged to send a voting paper in pursuance of such an application, if the address given is known to him to be outside the postal voting areas.

(3) Any application for a voting paper to be so sent may be superseded by a fresh application giving a new address and accompanied by the appropriate declaration, certificate or certificates, or may be cancelled by notice to the returning officer, but subject to the foregoing provisions of this subsection any such application shall continue in force for the purpose of any general election to which this Part of this Act applies.

(4) Any such application or notice shall be disregarded for the purpose of any election unless received by the returning officer four clear days at least before the day fixed for nomination.

(5) A person shall not be entitled to vote in person at any election at which he is entitled to have a voting paper sent to him under subsection (1) of this section.

(6) The making of such an application by any person shall not prevent or invalidate the appointment of a proxy to vote on his behalf or the casting of a vote by his proxy at any election, but if at a general election to which this Part of this Act applies a voting paper is duly returned by him so as to be received by the returning officer before the day on which the counting of the votes is to begin, any vote cast by the proxy on his behalf shall be void.

(7) Electoral registration regulations shall make provision for giving effect to the last foregoing subsection, and shall for that purpose in particular provide—

(a) for marking, on any copy of the register to be used at any general election to which this Part of this Act applies for checking voting papers before they are counted, the name of any person entitled to have a voting paper sent to him under subsection (1) of this section at that election ;

- (b) for rejecting any vote cast on his behalf by his proxy at that election if it is found when the voting papers are checked that he himself has returned a voting paper with the declarations thereon duly filled in ;
- (c) for any other matters which appear to the Secretary of State to be incidental to or consequential on the foregoing provisions of this subsection, including such amendments of the Fifth Schedule to the Act of 1918 and any other enactment (including any Order in Council made under that Act) as appear to him to be necessary for carrying those provisions into effect.

PART IV.
—cont.

(8) In the application of this section to the combined Scottish University constituency any reference to the returning officer shall be construed, in relation to any elector, as a reference to the registrar of the University in the register for which that elector is registered.

28.—(1) For the purpose of enabling the rights of voting by Consequential post conferred by this Part of this Act (including the rights provisions. conferred in relation to university elections) to be effectively exercised, the following provisions shall have effect :—

- (a) the counting of the votes at any general election to which this Part of this Act applies shall, instead of beginning as soon as possible after the close of the poll, begin not earlier than nine o'clock in the morning of the twentieth day thereafter, and any vote cast by post under this Part of this Act shall, if received before the beginning of the said twentieth day, be as effective and be dealt with as nearly as may be in the same way as if received before the close of the poll ;
- (b) the time appointed for the meeting of the new Parliament after any such election shall be any time not less than forty clear days, instead of any time not less than twenty clear days, after the Proclamation summoning the Parliament or, if the time for holding the election is extended under section two of the Act of 1943 so as to allow for the preparation of a register, after the coming into force of the register ;
- (c) provision shall be made by electoral registration regulations for entitling any candidate at any such election to send to each person entitled to vote by post in the constituency under this Part of this Act any document containing matter relating to the election only (subject to such limits of size and weight as may be prescribed) by having it enclosed in the same cover as the ballot paper or voting paper to be sent to that person ;

PART IV.
—cont.

(d) the arrangements made by a government department under section ten of the Act of 1943, and under that section as extended by electoral registration regulations to war workers abroad, shall include arrangements for securing that (so far as circumstances permit) any person on whom rights are conferred under this Part of this Act with respect to voting by post shall—

(i) have an effective opportunity of exercising those rights, and in such manner as not to disclose the way in which he has voted or intends to vote ;

(ii) receive such instructions as to the effect of this Part of this Act and any regulations made under or by virtue of this Part of this Act, and such other assistance, as may be reasonably sufficient in connection with the exercise of those rights.

46 & 47 Vict.
c. 51.

(2) For the purpose of paragraph (c) of the foregoing subsection, candidates who are, under paragraph (4) of Part V of the First Schedule to the Corrupt and Illegal Practices Prevention Act, 1883, deemed to be joint candidates at an election shall be treated as a single candidate.

(3) The right of sending election matter to persons entitled to vote by post under this Part of this Act which is conferred by the said paragraph (c) shall, in relation to such persons, be in lieu of the right to send election matter post free conferred by subsection (2) of section thirty-three of the Act of 1918.

Extension of
persons who
may be
appointed
proxies for
service voters
at university
elections.

29.—(1) Notwithstanding anything in the Third Schedule to the Act of 1918 as it applies to university constituencies by virtue of section thirty-six of that Act, any person may be appointed proxy to vote at a university election, and may vote as proxy at such an election, on behalf of a member of the forces, seaman or other person if—

(a) he could be appointed to vote, and could vote, on his behalf at that election if the constituency were not a university constituency ; and

(b) his proxy paper is issued to him in pursuance of an application made in accordance with section eighteen of the Act of 1943 (which enlarges the right of members of the forces and seamen while that Act is in force to appoint a proxy in a university constituency and contains provisions for identifying their applications) or with that section as extended by electoral registration regulations to war workers abroad.

(2) Any proxy paper issued before the commencement of this Act shall be deemed to have been validly issued if it would have been validly issued by virtue of the foregoing subsection, had that subsection then been in force.

PART IV.

—cont.

Amendment
of the Act of
1943 as to
civilian
proxies at
parliamentary
elections.

30. Where electoral registration regulations provide that an application by any person for his name to be entered in the absent voters list is to be made as respects a prescribed period, a person whose name is so entered shall not be entitled to appoint a proxy otherwise than for that period or for so much thereof as remains unexpired at the time of the appointment (without prejudice however to his power to cancel the appointment); and accordingly, in sub-paragraph (b) of paragraph one of the First Schedule to the Act of 1943 for the words "at any election initiated during that period or any part thereof specified in the application," there shall be substituted the words "at an election for which that list will be used."

31.—(1) Subject to the provisions of this section, any person who is registered under this Act as a local government elector for any local government area—

Proxy voting
by service
voters at local
government
elections.

(a) in the service register ; or

(b) in pursuance of an application under this Act made by that person on a form of declaration of residence, or on that person's behalf by some other person, in the business premises register ;

shall be entitled to vote by proxy at any local government election for that area.

(2) A person shall not be entitled to vote by proxy under this section except by the proxy appointed by him for the purpose of parliamentary elections by virtue of the declaration of residence or application in pursuance of which he is registered in the said register :

Provided that the foregoing provisions of this subsection shall not apply to persons disqualified as peers from registration as parliamentary electors, but electoral registration regulations shall provide for conferring on them as nearly as may be the like rights as to the appointment of a proxy, and the cancellation of any such appointment, for the purposes of this section as if they were not so disqualified.

(3) A person may vote in person at a local government election, notwithstanding that he is entitled to vote by proxy at that election, but only if he applies for a ballot paper before a ballot paper has been issued to the proxy, and in that event the appointment of the proxy shall be void as respects that election.

Nothing in paragraph (b) of subsection (1) of section eighty-two of the Local Government Act, 1933, or in paragraph (b) of subsection (1) of section fifty-six of the London Government Act, 1939, shall be taken to penalise a person who, after a proxy appointed by him has voted under this section, applies for a ballot paper for the purpose of voting in person.

PART IV.
—cont.

(4) Paragraphs 12, 15 (except sub-paragraphs (a) and (d) thereof) 16 and 17 of the Second Schedule to the Act of 1943 (which relates to the voting of proxies at parliamentary elections) shall apply to the voting of proxies at local government elections under this section.

(5) The Second Schedule to the Local Government Act, 1933, or the London Government Act, 1939, as the case may be, and any other enactment regulating the holding of local government elections, including any provisions imposing penalties in connection with voting at those elections, shall apply to persons voting as proxies under this section as they apply to electors, subject however to the provisions of this section and to such modifications as may be prescribed for the purpose of adapting them to voting by proxy.

(6) In the application of this section to Scotland—

(a) for any reference to paragraph (b) of subsection (1) of section eighty-two of the Local Government Act, 1933, there shall be substituted a reference to section twenty-four of the Ballot Act, 1872, as extended or applied by any subsequent enactment ;

(b) subsection (5) shall have effect as if the reference to the Second Schedule to the Local Government Act, 1933, or the London Government Act, 1939, were omitted.

Application
and
interpretation
of Part V.

32.—(1) This Part of this Act, so far as it relates to voting by post at parliamentary elections, shall apply only to general elections initiated during the period beginning with the first day of April, nineteen hundred and forty-five, and ending with the thirty-first day of December in that year or with such later date as may be prescribed :

Provided that if a general election is initiated before the end of March in that year (so that no May 1945 register comes into force under this Act) a reference to the tenth day of September shall be substituted for the reference in this subsection to the first day of April.

(2) In this Part of this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say—

“ declaration of residence ” means a service declaration and any corresponding declaration to be made for the purposes of the Act of 1943 by a person engaged in war work abroad ;

“ postal voting areas ” means the United Kingdom and such other areas as may be prescribed ;

“ prescribed ” means prescribed by electoral registration regulations.

PART V.

MISCELLANEOUS AND GENERAL.

33.—(1) The date as soon as may be after which—

(a) the Boundary Commissions for Scotland, Wales and Northern Ireland are required to be constituted under paragraph (b) of subsection (2) of section one of the House of Commons (Redistribution of Seats) Act, 1944; and

Amendment
as to re-
distribution
of seats.

7 & 8 Geo. 6.
c. 41.

(b) all the Boundary Commissions are required under subsection (1) of section three of that Act to take into consideration the representation in the House of Commons of that part of the United Kingdom with which they are concerned;

shall, instead of being the date on which regulations made in pursuance of subsection (3) of section twelve of the Act of 1943 come into force, be the day appointed for the purposes of this section; and in relation to a report by a Boundary Commission under the said section three of the said Act of 1944, the enumeration date for the purpose of the Third Schedule to the said Act shall be the day so appointed instead of the date mentioned in subsection (2) of that section.

(2) The day appointed for the purposes of this section shall be the fifteenth day of October, nineteen hundred and forty-six, or if the Secretary of State by order so directs, the next preceding or next succeeding fifteenth day of October:

Provided that no such order shall have effect unless a draft thereof has been approved by resolution of each House of Parliament.

(3) For sub-paragraph (b) of paragraph (1) of rule 8 of the rules contained in the Third Schedule to the said Act of 1944 (which defines the expression "electorate") there shall be substituted the following sub-paragraph—

"(b) the expression 'electorate' means—

(i) in relation to a constituency or any part thereof, the number of persons whose names appear on the parliamentary register of electors in force on the enumeration date under the Representation of the People Acts for the constituency or that part thereof, or, if no such register is then so in force, the last such register which was so in force; and

(ii) in relation to Great Britain or Northern Ireland, the aggregate electorate as hereinbefore defined of all the constituencies therein."

PART V.

—cont.

Provision as to
superannua-
tion rights of
contributory
employees.

1 Edw. 8 &
1 Geo. 6. c. 68.

34.—(1) Subject to the following provisions of this section, any contributory employee or local Act contributor who received in respect of work done by him in the standard year as returning officer at a local government election, other than an election to fill a casual vacancy, or in connection with the preparation of a register of electors under the Act of 1918 or jurors' book, remuneration, otherwise than as part of an inclusive salary continuing to be received by him, shall be entitled to contribute a sum in respect of that remuneration to the appropriate superannuation fund in respect of any year in which, by reason only of the Act of 1943 or this Act being in force, he is not required to do such work; and for the purpose of computing in accordance with the provisions of section eight of the Local Government Superannuation Act, 1937, the average remuneration of any contributory employee or of calculating the superannuation allowance of any local Act contributor under a local Act scheme, he shall be deemed to have received, in respect of service rendered in any year in respect of which such contributions were made by him, the remuneration by reference to which the contributions were calculated.

(2) A person otherwise entitled under subsection (1) of this section to make contributions to a superannuation fund in respect of any year shall not be so entitled if he receives in respect of work done in that year by him under the Act of 1943 and this Act (otherwise than as part of an inclusive salary) remuneration greater than that in respect of which he would be entitled to make the contributions.

(3) Where a person makes a contribution under the said subsection (1) in respect of any year, he shall not be required or entitled to make, in respect of that year, any contribution under the Local Government Superannuation Act, 1937, in respect of the remuneration received by him (otherwise than as part of an inclusive salary) in respect of work done by him in that year under the Act of 1943 or this Act, and the said remuneration shall be disregarded for the purpose of computing, in accordance with the provisions of section eight of the said Act of 1937, his average remuneration (if he is a contributory employee) or of calculating his superannuation allowance under a local Act scheme (if he is a local Act contributor).

(4) In this section the expressions "contributory employee," "local Act contributor," "local Act scheme" and "appropriate superannuation fund," have the same meanings, respectively, as in the Local Government Superannuation Act, 1937, except that in relation to a local Act contributor the last mentioned expression means the superannuation fund in the benefits of which he is entitled to participate; and the

expression "standard year" means, in relation to work done by any person as returning officer at a local government election, the last year before the year nineteen hundred and forty in which such work was done by him, and, in relation to work done by any person in connection with the preparation of a register of electors or jurors' book, the year nineteen hundred and thirty-nine

PART V.
—cont.

(5) In the application of this section to Scotland references to the Local Government Superannuation (Scotland) Act, 1937, shall be substituted for references to the Local Government Superannuation Act, 1937. 1 Edw. 8 &
1 Geo. 6. c. 69.

35.—(1) There shall be paid out of moneys provided by Parliament— Temporary provisions as to expenses of registration.

(a) to the Registrar-General of births, deaths and marriages in England and the Registrar-General of births, deaths and marriages in Scotland, any increase occasioned by this Act in the expenses incurred by them respectively for the purposes of the Act of 1943 and any expenses incurred by them respectively for the purposes of this Act;

(b) to registration officers, any increase occasioned by this Act in the registration expenses to be paid to them as aforesaid under subsection (2) of section fourteen of the Act of 1943 and any registration expenses incurred by them under this Act on or before the seventh day of May, nineteen hundred and forty-five.

(2) The said subsection (2) of section fourteen of the Act of 1943 and subsection (4) of that section (which requires a registration officer to account to the Treasury for certain fees and other sums received in respect of his registration duties) shall cease to have effect with respect to any registration expenses incurred or fees or other sums received after the said seventh day of May, and—

(a) section fifteen of the Act of 1918 (which relates to the expenses of registration, etc., under that Act and provides that those expenses shall be paid by the local authority and reimbursed as to one half out of moneys provided by Parliament) shall apply for the purpose of the registration of electors in the annual register as it applies for the purpose of the registration of electors under that Act; and

(b) for the purposes of this subsection all registration expenses incurred after the said seventh day of May in connection with the registration of electors under the Act of 1943 or this Act, and all fees or other sums received by a registration officer as such after

PART V.
—cont.

that date in connection with such registration, shall be deemed to have been incurred or received in connection with the registration of electors in the annual register.

(3) Subsection (3) of the said section fourteen of the Act of 1943 (which relates to the expenses of certain other officers having functions in connection with the registration of electors, and provides that in so far as incurred under national registration regulations they shall be treated as incurred by the Registrar-General of births, deaths and marriages in England and in so far as otherwise incurred they shall be treated as part of the registration expenses of registration officers) shall apply to expenses incurred by virtue of this Act as if references therein to that Act included references to this Act.

(4) In this section the expression "registration expenses" has the same meaning as in the said section fifteen of the Act of 1918.

(5) In the application of this section to Scotland—

- (a) for the words "registration officers" there shall be substituted the words "councils appointing registration officers";
- (b) for the reference to section fifteen of the Act of 1918 there shall be substituted a reference to the provision substituted therefor by section forty-three of that Act; and
- (c) for the reference to subsection (3) of section fourteen of the Act of 1943 there shall be substituted a reference to the subsection substituted therefor by section twenty-three of the said Act.

Permanent
provisions as
expenses of
registration.

36.—(1) It is hereby declared that nothing in subsection (2) of section fifteen of the Act of 1918 (which authorises the Treasury to frame a scale of registration expenses and provides that expenses shall be taken to be properly incurred if not exceeding the maximum amount in the scale) is to be construed as entitling a registration officer to receive payments in excess of the expenses actually incurred by him, except his proper and reasonable charges for his own trouble, care and attention.

(2) For the purposes of the said section fifteen the registration expenses payable to a registration officer may include sums for the remuneration and expenses of any staff provided by a local authority, but shall not include any sum on account of the use of premises, furniture or equipment provided by a local authority in excess of the amount by which that authority's expenditure has actually

been increased by the use of those premises or of that furniture or equipment in connection with the registration of electors.

PART V.
—cont.

37. Section twenty of the Act of 1943 (which requires electoral registration regulations to be approved by Parliament before coming into force) shall apply to electoral registration regulations made under this Act as it applies to electoral registration regulations made under that Act. Approval of
electoral
registration
regulations.

38. In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:— Interpretation.

“ the Act of 1918 ” means the Representation of the People Act, 1918, as amended by any subsequent enactment; 7 & 8 Geo. 5.
c. 64.

“ the Act of 1943 ” means the Parliamentary Electors (War-Time Registration) Act, 1943, as amended by the Parliamentary Electors (War-Time Registration) Act, 1944; 6 & 7 Geo. 6.
c. 48.

“ constituency ”, “ general election ” and “ university constituency ” have the same meanings respectively as in the Act of 1918;

“ electoral registration regulations ” means regulations made by the Secretary of State under the Act of 1943, or this Act, and the expression “ national registration regulations ” has the same meaning as in that Act;

“ local government area ” and “ local government election ” mean respectively any area which is a local government electoral area for the purposes of the Act of 1918, and a local government election within the meaning of that Act; and the expression “ local government elector ” shall be construed accordingly.

39.—(1) Subject to the following provisions of this section, any reference in this Act to an enactment of the Parliament of the United Kingdom shall, in the application of this Act to Northern Ireland, be construed as a reference to that enactment as it applies in Northern Ireland. Application to
Northern
Ireland.

(2) Subject to the following provisions of this section, nothing in this Act shall apply in respect of the election of members to serve in the Parliament of Northern Ireland or of members of any local authority in Northern Ireland, and accordingly, but without prejudice to the generality of the foregoing words—

(a) in respect of any such election, sections one and two of this Act shall not apply;

(b) the annual register shall in Northern Ireland consist only of the general register, and neither that register

PART V.
—*cont.*

nor any register prepared under the Act of 1943 shall relate to local government electors;

- (c) the register of local government electors prepared under section eleven of the Act of 1918, which came into force in Northern Ireland on the fifteenth day of December, nineteen hundred and thirty-nine, shall remain in force for the purposes and for the period for which it would have remained in force if this Act had not been passed.

(3) For the reference in subsection (4) of section fourteen to the registration officer there shall, in the application of this Act to Northern Ireland, be substituted a reference to the person to whom the application referred to in that subsection is to be made in accordance with electoral registration regulations.

(4) In the application of this Act to Northern Ireland paragraph (b) of subsection (1) of section thirty-five shall apply to registration expenses incurred by registration officers under this Act, whether or not incurred after the seventh day of May, nineteen hundred and forty-five; and for subsection (2) of the said section thirty-five there shall be substituted the following subsection:—

“(2) Subsection (2) of section fifteen of the Act of 1918 (which authorises the Treasury to frame a scale of registration expenses) shall apply for the purposes of paragraph (b) of the last foregoing subsection and for the purposes of the said subsection (2) of section fourteen of the Act of 1943 as it applies for the purposes of the said section fifteen of the Act of 1918.”

(5) For the purpose of any Act of the Parliament of Northern Ireland, whether passed before or after this Act, (hereafter in this section referred to as the “Northern Irish Act”) which makes provision for the use, in connection with the registration of electors for the election of members to serve in that Parliament or of members of local authorities in Northern Ireland, of any information as to the National Register, or of any information or document to be used also for the purposes of the Act of 1943 or Part III of this Act, subsection (3) of section five of the Act of 1943, section ten of that Act (both as therein enacted and as applied in relation to persons engaged in war work abroad by electoral registration regulations) and paragraph 3 of Part II of the Fourth Schedule to this Act shall apply as they apply for the purposes of the Act of 1943 and Part III of this Act, subject to the following modifications:—

- (a) any reference in subsection (3) of the said section five (which as it applies to Northern Ireland confers

power by national registration regulations to prescribe the information as to the National Register which is to be furnished to registration officers for the purposes of that section) to that section shall be construed as a reference to the Northern Irish Act;

- (b) any reference in the said section ten (which relates to the affording of information and facilities to service voters) or the said paragraph 3 to the Act of 1943 or Part III of this Act shall include a reference to the Northern Irish Act.

(6) The Northern Irish Act may provide for making (with the consent of the Secretary of State) such alterations of and additions to any forms prescribed under electoral registration regulations, or any electors list, supplementary list, register or other document to be used for the purposes of the Act of 1943 or Part III of this Act, as may be necessary or proper for the purposes of the Northern Irish Act.

(7) The Treasury may make with the appropriate department of the Government of Northern Ireland arrangements for determining what part of any expenses incurred in connection with the registration of electors in Northern Ireland is to be attributed respectively to the Act of 1943 or Part III of this Act and to the Northern Irish Act, and the arrangements may make provision—

- (a) for making any scale of registration expenses framed by the Treasury by virtue of this section applicable to expenses incurred wholly or partly for the purposes of the Northern Irish Act which cannot readily be kept separate from other expenses to which the scale applies;
- (b) for the apportionment in such manner as may be agreed of any such expenses; and
- (c) as to the manner in which any such expenses are to be paid in the first instance.

40.—(1) This Act may be cited as the Representation of the People Act, 1945, and shall be included among the Acts which may be cited as the Representation of the People Acts.

Short title,
citation and
repeal.

(2) The enactments mentioned in the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

SCHEDULES.

Section 3.

FIRST SCHEDULE.

FORMS OF SERVICE DECLARATION, ETC.

1. Any service declaration made by a person who is a member of the forces by virtue of section three of this Act shall be in the following form, or a form to the like effect :—

Form of Service Declaration.

(For use by members of the Indian, Burmese or Colonial defence forces who (a) joined on or after September 1st, 1939, or (b) (in case of reserve or auxiliary forces only) were called up for service on or after that date).

I HEREBY DECLARE THAT I :—

Surname.....Service.....

(BLOCK CAPITALS)

Christian Names

Service No. (if any).....Rank or Rating.....

Am a British subject and

- * (a) joined
 - * (b) was called up for service
 - * Am
 - * Am not
- on or after September 1st, 1939
- 21 years of age or over

* (If under 21 years of age) was born on—

Day	Month	Year
:	:	:

and reside or but for my service would reside at :—

(Full postal address).....

I HEREBY CANCEL ANY PREVIOUS DECLARATION MADE BY ME.

Signed..... Date.....

Signature of Commanding Officer.....

Ship, Regt. or Unit.....

* Cross out inapplicable words.

2.—(1) Any declaration corresponding to a service declaration to be made by such a person as is referred to in subsection (2) of the said section three shall be in the following form or a form to the like effect :—

Form of Declaration of Residence by a War Worker.

I HEREBY DECLARE THAT I :—

Surname.....
(BLOCK CAPITALS)

Christian Names.....

Am a British subject, aged * 21 years or over

* under 21 years, having been born on—

Day	Month	Year
:	:	:

and would, but for my engagement in war work abroad, reside at :—

(Full postal address).....

Before taking up such war work I served during the present war in H.M. Forces (otherwise than in a Dominion force), was discharged or released therefrom abroad and have not since been registered in the National Register.

My service particulars on release or discharge were :—

Service..... Service No. (if any).....

Rank or Rating..... Ship, Regt. or Unit.....

I HEREBY CANCEL ANY PREVIOUS DECLARATION MADE BY ME.

Signed..... Date.....

* Cross out inapplicable words.

(2) Any such declaration shall be combined in the same document with the certificates required by the said subsection (2), which shall be in the following form, or a form to the like effect :—

(a) Form of Certificate as to release or discharge.

I, being a commissioned officer in H.M. Forces, hereby certify that the above declarant served in and was discharged or released from H.M. forces as stated in the declaration.

Signed..... Rank

Ship, Regt. or Unit Date

(b) Forms of certificate as to war work.

(i) (If given by an officer of a government department)

I, being a duly authorised officer of a government department, viz.

..... hereby certify on behalf of that department that the above declarant is employed or serving in or in connection with the department and is engaged in work of national importance outside the United Kingdom in connection with the present war,

Signed Date

Rank or capacity

1ST SCH.
—cont.(ii) *(If given by an officer of an authorised organisation)*

I being an officer of.....
acting under the instructions of that organisation in the exercise of
the authority conferred upon it by a government department or
departments, hereby certify on behalf of the department or departments
that the above declarant is in the employment or service of the
organisation and is engaged in work of national importance outside
the United Kingdom in connection with the present war.

Signed..... Date

Rank or capacity

3. Any appointment of a proxy made by any such member of the
forces or person, where combined in the same document with a service
declaration or with such a declaration of residence as aforesaid, shall
be in the form prescribed by the Electoral Registration Regulations,
1944, for use by members of the forces where the appointment is
combined with a service declaration.

4. Save as aforesaid none of the forms prescribed by Part II of
the Third Schedule to the said Regulations shall be applicable in
the case of any such member of the forces or person as aforesaid,
except the form of application by a member of the forces to vote by
post.

5. The provisions of this Schedule may be repealed or amended
by electoral registration regulations.

ections 15, 16.

SECOND SCHEDULE.

REGISTRATION AS LOCAL GOVERNMENT ELECTOR.

1.—(1) The qualifying date for registration as a local government
elector in the civilian residence, business premises or service register
shall be the same as the qualifying date for registration as a parlia-
mentary elector.

(2) For the purpose of registration in the ratepayers register the
references in section three of the Act of 1918 to the qualifying period
shall be construed as references to the period of two months ending
with the said qualifying date, and subsections (2) and (4) of section
seven of the said Act (which contain provisions as to interrupted periods
of occupation) shall not apply for the purposes of the said section three
as modified by this sub-paragraph :

Provided that, if on the said qualifying date section one of the
Parliamentary Electors (War-Time Registration) Act, 1944, is in
force, paragraph (b) of the said section three (requiring a continuous
period of occupation) shall also not apply and accordingly paragraph
(a) thereof shall have effect as if the said qualifying date were therein
referred to instead of the last day of the qualifying period.

2.—(1) Where for the purposes of election a local government
area (other than a county borough or borough, not being a metro-
politan borough) is divided into more than one ward or electoral

division (by whatever name called) a person may be registered for more than one such ward or division (whether in respect of qualifications of the same or a different nature), but save as aforesaid a person shall not be entitled to be registered in respect of more than one qualification as an elector for the same local government area, and where he may be registered once only as a local government elector for any area, ward or division, and is entitled to be so registered in the general register, shall not be entitled to be so registered in the ratepayers register.

(2) A person shall be entitled to be registered as an elector for different local government areas, or (except where the area is a county borough or borough other than a metropolitan borough) for different wards or electoral divisions in the same local government area, in respect of any number of qualifications conferred by section one of this Act, notwithstanding that he will be so registered in the same parliamentary constituency and accordingly would not be entitled to be so registered as a parliamentary elector.

3. A person shall be entitled to be registered in the service register at any address as a local government elector if, but only if, he is entitled to be so registered as a parliamentary elector by virtue of a service declaration or other declaration of residence received by the registration officer before the qualifying date :

Provided that the foregoing provisions of this paragraph shall not apply to persons disqualified as peers from registration as parliamentary electors, but electoral registration regulations shall provide for conferring on them as nearly as may be the like rights as to registration in the service register as local government electors as if they were not so disqualified ; and any declaration of residence, or cancellation of such a declaration, required to be made for that purpose by any such person shall be in the same form as the corresponding declaration to be made by other persons for the purpose of registration as parliamentary electors, but shall be marked with the words " not available for parliamentary elections ; available only for local government elections in areas containing the address mentioned ", or words to the like effect.

4.—(1) A person shall not be entitled to be registered in the business premises register or in the ratepayers register as an elector for any local government area unless he makes an application in that behalf in the prescribed form and manner and within the prescribed time stating the prescribed particulars.

(2) In this paragraph the expression " prescribed " means prescribed by electoral registration regulations.

5.—(1) The following provisions of the Act of 1943 shall apply for the purposes of this Schedule as they apply for the purposes of that Act, namely :—

- (a) subsections (2) and (3) of section five (which contain provisions as to the effect, for the purposes of the civilian residence register, of registration in the National Register and as to information required for the purposes of the civilian residence register) ;

2ND SCH.
—cont.

- (b) section thirteen (which relates to registration officers, their areas and duties); and
- (c) section fifteen (which penalises the making of false declarations, etc.);

subject to the modification that in the said section fifteen the reference to an application to be registered in the business premises register shall include a reference to an application to be registered in the ratepayers register, and to any other modifications made by electoral registration regulations.

(2) Electoral registration regulations may also apply for the purposes of this Schedule, either generally in all cases or in such cases or for such purposes as may be specified in the regulations, any other provisions of the Act of 1943, subject to any modifications made by the regulations.

6.—(1) In the application of this Schedule to Scotland—

- (i) for any reference to a county borough or a borough there shall be substituted a reference to a burgh, and
- (ii) for sub-paragraph (2) of paragraph 1 the following sub-paragraph shall be substituted—

“(2) For the purpose of registration in the ratepayers register the references in the provision substituted by section forty-three of the Act of 1918 for section three thereof to the qualifying period shall be construed as references to the period of two months ending with the said qualifying date, and subsection (2) of section seven of the said Act shall not apply for the purposes of the aforesaid provision as modified by this sub-paragraph:

Provided that, if on the said qualifying date section one of the Parliamentary Electors (War-Time Registration) Act, 1944, is in force, the aforesaid provision shall have effect as if for the words ‘last day of the qualifying period’ there were substituted the words ‘qualifying date’ and as if the words ‘and has been during the whole of that period’ were omitted.”

Section 23.

THIRD SCHEDULE.

TRANSITIONAL PROVISIONS ON EXPIRATION OF NATIONAL REGISTRATION ACT, 1939.

1.—(1) If the National Registration Act, 1939 (hereafter in this Schedule referred to as “the Act of 1939”) expires during the period beginning with the first day of January and ending with the thirty-first day of March in any year (so that a register of electors under the Act of 1918 will be prepared in that year), the following provisions of this paragraph shall have effect.

3RD SCH.
—cont.

(2) If a general election is initiated on or after the said first day of January and before the expiration of the Act of 1939, the civilian residence and service registers in force for that election shall also be the civilian residence and service registers in force, instead of the registers specified in section thirteen of this Act, for any parliamentary election initiated after the expiration of the Act of 1939.

(3) If a general election is not initiated as aforesaid, then the civilian residence and service registers comprised in the annual register which comes into force in the preceding year shall be not only the civilian residence and service registers in force for any parliamentary election initiated during the period beginning with the tenth day of September and ending with the thirty-first day of December in the last-mentioned year (as provided by section thirteen of this Act), but also the civilian residence and service registers in force, instead of the registers specified in the said section thirteen, for any parliamentary election initiated after the expiration of the Act of 1939.

2.—(1) If, in the year in which the Act of 1939 expires, neither an annual register under this Act nor a register of electors under the Act of 1918 is to be prepared by reason of the expiration of the Act of 1939 between the end of March and the date which would be the qualifying date for the general register comprised in the annual register, the following provisions of this paragraph shall have effect.

(2) Civilian residence and service registers shall be prepared and published in accordance with the Act of 1943 in each constituency as if a general election had been initiated on the last day on which the Act of 1939 was in force.

(3) The registers so published shall be substituted for the civilian residence and service registers comprised in the annual register which is then in force as the register of local government electors.

(4) The registers so published shall also be the civilian residence and service registers in force, instead of the registers specified in section thirteen of this Act, for any parliamentary election initiated after the expiration of the Act of 1939, and shall for that purpose come into force on the thirty-sixth day after the expiration of the Act of 1939.

(5) A business premises register and a ratepayers register shall be prepared and published in the said year as if the Act of 1939 had not expired, and shall be treated for the purposes of Part III of this Act as if they had been duly published thereunder as part of an annual register to be prepared in that year.

3.—(1) If in the said year an annual register is prepared (the Act of 1939 expiring between the qualifying date for the general register comprised therein and the beginning of the following year), the following provisions of this paragraph shall have effect.

(2) The civilian residence and service registers comprised in the annual register prepared in that year shall be, not only the civilian residence and service registers in force for any parliamentary election initiated during the period beginning with the tenth day of September

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and ending with the thirty-first day of December in that year (as provided by section thirteen of this Act) but also the civilian residence and service registers in force, instead of the registers specified in the said section thirteen, for any parliamentary election initiated during the remainder of the twelve months beginning with the fifteenth day of October in that year.

(3) If the Act of 1939 expires during the period between the qualifying date for the general register comprised in the annual register prepared in that year and the tenth day of September, and a parliamentary election is initiated in any constituency (including a general election) between the expiration of the Act of 1939 and the said tenth day of September, civilian residence and service registers shall be specially prepared under the Act of 1943 for that election as if the Act of 1939 had not expired, and sections thirteen and sixteen of this Act shall apply accordingly.

4. Nothing in the foregoing paragraphs of this Schedule shall apply to the register to be in force for any parliamentary election at which the time fixed for nomination falls after the coming into force of a new register under the Act of 1918.

5. Subsection (2) of section two of the Act of 1943, as amended by this Act, shall apply in relation to any parliamentary election, the register for which is to be or include a register prepared by virtue of this Schedule, as if it were a war election within the meaning of the Act of 1943.

6. Until the expiration of the Act of 1943 any national registration regulations made by virtue of the Act of 1943 or of this Act shall continue in force, and may be varied or revoked, as if the Act of 1939 had not expired.

Section 24.

FOURTH SCHEDULE.

ADAPTATION OF ENACTMENTS.

PART I.

ADAPTATIONS OF ACT OF 1943 TO PART III OF THIS ACT.

In the following provisions of the Act of 1943 references to that Act shall be construed as including references to Part III of this Act, so far as it relates to parliamentary elections, namely :—

- (a) subsection (1) of section two (which provides for construing for the purposes of that Act references to the initiation of an election) ;
- (b) subsection (1) of section eleven as extended by section three of this Act (which subsection provides for conferring on persons

engaged in war work abroad rights similar to those conferred by that Act on seamen) ;

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- (c) subsection (2) and the following subsections of section thirteen (which relate to the duties of registration officers and other persons in connection with registration under that Act) ;
- (d) section sixteen (which relates to the right of a person registered under that Act to vote) ;
- (e) section seventeen (which provides that where a candidate dies after nomination the register prepared under that Act should remain in force, notwithstanding that section one of the Ballot Act, 1872, requires proceedings to be begun again as from the initiation of the election) ;
- (f) subsection (1) of section twenty-one (which, in relation to registration under that Act and to voting where the register is prepared under that Act, excludes the application of Parts I and II of the Act of 1918).

PART II.

ADAPTATION OF ENACTMENTS TO ACT OF 1943 AND PART III OF THIS ACT.

1.—(1) Subject to the provisions of this Act and the Act of 1943, there shall be substituted for any reference in any other Act (including the Act of 1918)—

- (a) to parliamentary electors, parliamentary voters, or persons entitled to vote at parliamentary elections, by whatever name called, a reference to parliamentary electors registered under the Act of 1943 or this Act ;
- (b) to local government electors, county electors, burgesses, parochial electors, or other persons entitled to vote at a local government election, by whatever name called, a reference (so far as local government elections and the right to vote at any such elections are concerned) to local government electors registered under this Act ;
- (c) to the parliamentary register of electors or to the parliamentary register or to the register of parliamentary electors or to the register of persons entitled to vote at a parliamentary election, by whatever name called, a reference to the register of parliamentary electors in force by virtue of this Act ;
- (d) to the local government register of electors, the burgess roll, the county register, the register of parochial electors, or to the register of persons entitled to vote at a local government election, by whatever name called, a reference to the register of local government electors in force under this Act ;

and local government electors registered under this Act shall for all purposes, whether statutory or not, be in the same position as local government electors registered under the Act of 1918.

(2) For the purposes of the foregoing sub-paragraph a civilian residence or service register published for any constituency, so far as

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it relates to parliamentary electors, shall be deemed to continue in force (notwithstanding that it will not be used for parliamentary elections) until a new civilian residence or service register comes into force for that constituency, and the reference in that sub-paragraph to parliamentary electors registered under the principal Act or this Act shall be construed accordingly.

(3) This paragraph shall not apply in relation to any time after the date of the coming into force of a new register prepared under section eleven of the Act of 1918, except for the purpose of any parliamentary election at which the time fixed for nomination falls before that date.

(4) Nothing in this paragraph shall have the effect of applying in relation to any register of local government electors under this Act any of the provisions of Part II of or the First Schedule to the Act of 1918.

46 & 47 Vict.
c. 51.

2. Any corrupt and illegal practices list required to be published annually by section thirty-nine of the Corrupt and Illegal Practices Prevention Act, 1883, shall be published with the electors lists for any business premises register prepared under Part III of this Act, and not with any other register so prepared.

3. Nothing in subsection (2) of section eight of the National Registration Act, 1939, (which penalises the improper disclosure by persons employed for the purposes of that Act of information acquired in the course of their employment), shall make it an offence to furnish information as to the National Register required for the purposes of the Act of 1943 or Part III of this Act in accordance with national registration regulations; but the said subsection (2) shall apply to any such information acquired by persons exercising functions or employed for the purposes of the Act of 1943 or Part III of this Act as if the exercise of those functions or that employment, as the case may be, were employment for the purposes of the said Act of 1939.

4. Where a registration officer is the clerk of a county council, any sums payable to him for his personal remuneration as registration officer in connection with the registration of electors under the Act of 1943 or Part III of this Act shall be dealt with under subsection (2) of section ninety-nine of the Local Government Act, 1933 (which provides among other things that the clerk of a county council shall account to the county fund for all fees and costs payable to him except fees and costs excluded when his salary is determined), in the same way as, in his case, any sums payable for his personal remuneration in connection with the registration of electors under the Act of 1918 would be dealt with under the said subsection (2).

5. The foregoing provisions of this Part of this Schedule may be varied or supplemented by electoral registration regulations.

FIFTH SCHEDULE.

Section 40

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
7 & 8 Geo. 5. c. 64.	The Representation of the People Act, 1918.	In Rule 2 of the First Schedule the words "the names of those who are entitled to vote as parliamentary electors but not as local government electors", except as respects Northern Ireland.
18 & 19 Geo. 5. c. 12.	The Representation of the People (Equal Franchise) Act, 1928.	So much of section one as inserts in the Act of 1918 a new paragraph (c) of subsection (1) of section one, so much of section two as inserts in that Act a new paragraph (c) of and proviso (iii) to section three, and so much of section seven as inserts in that Act a new sub-paragraph (c) of paragraph (3) of section forty-three, except as respects the cases mentioned in the proviso to section two of this Act.
2 & 3 Geo. 6. c. 115.	The Local Elections and Register of Electors (Temporary Provisions) Act, 1939.	The whole Act, except section nine and section three as it applies for the purposes of section nine.
4 & 5 Geo. 6. c. 3.	The Local Elections and Register of Electors (Temporary Provisions) Act, 1940.	The whole Act, except section two and except in so far as it amends section three of the last mentioned Act as that section applies in Northern Ireland.
4 & 5 Geo. 6. c. 49.	The Local Elections and Register of Electors (Temporary Provisions) Act, 1941.	The whole Act.
5 & 6 Geo. 6. c. 38.	The Local Elections and Register of Electors (Temporary Provisions) Act, 1942.	The whole Act.
6 & 7 Geo. 6. c. 48.	The Parliamentary Electors (War-Time Registration) Act, 1943.	In subsection (4) of section one the words from the beginning of the subsection to "business premises register". Paragraph (b) of subsection (1) and subsection (2) of section six, except as respects the cases mentioned in the proviso to section two of this Act.

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Session and Chapter.	Short Title.	Extent of Repeal.
6 & 7 Geo. 6. c. 48—cont.	The Parliamentary Electors (War-Time Registration) Act, 1943— cont.	In paragraph (a) of subsection (2) of section twelve, the words "and business premises register", and paragraph (b) of subsection (3) of that section. Subsections (2) and (4) of section fourteen, except as respects registration expenses incurred and fees and other sums received before the eighth day of May, nineteen hundred and forty-five, and except as respects Northern Ireland. Subsections (1) and (2) of section nineteen, and in subsection (5) of that section the words "a register of electors or". Subsection (2) of section twenty-one. Subsection (2) of section twenty-four. The Third Schedule, except that paragraphs 1 to 3 shall continue to have effect for the period and in the cases mentioned in the proviso to subsection (2) of section twenty-four of this Act.
7 & 8 Geo. 6. c. 2.	The Local Elections and Register of Electors (Temporary Provisions) Act, 1943.	The whole Act except section two.
7 & 8 Geo. 6. c. 41.	The House of Commons (Redistribution of Seats) Act, 1944.	Subsection (2) of section three. Sub-paragraph (b) of paragraph (1) of rule 8 of the Third Schedule.
8 & 9 Geo. 6. c. 3.	The Local Elections and Register of Electors (Temporary Provisions) Act, 1944.	The whole Act.